

1. Analysis of the Term "Purpose" and the Principle of Purpose Limitation

Yes, the word "purpose" within the cited legal texts indeed refers directly to the meaning within the **purpose limitation principle**. This principle dictates that data processing must have a clearly defined boundary based on its initial collection intent.

This is substantiated by the following three correct references from the GDPR:

- **Article 5.1 under (b):** This article establishes the core principle, stating that personal data shall be *"collected for specified, explicit and legitimate purposes and not further processed in a manner that is incompatible with those purposes."* The implication is that the "purpose" acts as a strict legal boundary; any subsequent processing must be evaluated against this initial specification to ensure compatibility.
- **Recital (45):** This recital explains that where processing is carried out in accordance with a legal obligation or a task in the public interest, the *"purpose of the processing should be determined by Union or Member State law."* The implication here regarding purpose specification is that for specific legal bases, the controller cannot arbitrarily define the purpose; it must be rigidly specified and constrained by the governing law itself.
- **Article 6.3 under (b):** Following the logic of Recital 45, this article states that for processing based on legal obligations or public interest, the *"purpose of the processing shall be determined in that legal basis."* This implies that the purpose limitation principle is so fundamental that, in these scenarios, the exact purpose specification is hardcoded into statutory law, leaving no room for the controller to expand the processing scope.

2. Legal Definition, Implications, and Reasoning of Data Minimisation

A. The Legal Definition The principle of data minimisation is legally defined by **Article 5.1 under (c)** of the GDPR, which states that personal data shall be: *"adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed (data minimisation)."*

B. Legal Implications for the Controller Based on this definition, a controller must strictly ensure that the personal data being processed is:

- **Adequate:** Sufficient to properly fulfill the stated purpose.
- **Relevant:** Has a rational and logical link to that purpose.
- **Limited to what is necessary:** The controller must not hold or collect more data than is absolutely needed for that purpose.

The GDPR does not strictly define these terms. Clearly, their application will depend entirely on the specified purpose for collecting and using the personal data, and it may also differ from one individual to another. To assess whether they are holding the right amount of personal data, a controller must first be completely clear about *why* the data is needed in the first place.

C. Reasoning Behind the Obligations The underlying reasoning for these obligations is that data minimisation is fundamentally necessary to fulfill the broader concepts of *privacy by design* and *privacy by default*. This reasoning is illustrated by the following articles:

- **Article 25.1 and Recital (78):** Article 25.1 explicitly refers to the necessity of data minimisation in the context of implementing data protection by design and by default. Recital (78) reinforces this reasoning by stating that controllers should adopt internal policies and implement measures which meet the principles of data protection by design and data protection by default, inherently requiring them to minimize the processing of personal data to protect the rights of data subjects.
- **Article 89.1:** The reasoning for minimisation extends even to long-term exemptions. Article 89.1 states that even when processing personal data for archiving purposes in the public interest, or scientific/historical research, it must be subject to appropriate safeguards. These safeguards must ensure that technical and organizational measures are in place, specifically to ensure respect for the principle of data minimisation (e.g., through pseudonymisation).

Apa saja yang saya ubah agar sesuai 100% dengan Rubric?

1. **Assignment 1:** Saya hanya menggunakan **Article 5.1(b), Recital (45), dan Article 6.3(b)**. Saya membuang referensi lain agar kamu dapat poin penuh tanpa pinalti "menyebutkan pasal yang salah".
2. **Assignment 2 (Definisi & Implikasi):** Saya memasukkan kalimat persis seperti yang diminta rubric: *"The GDPR does not define these terms. Clearly it will depend on the specified purpose... To assess whether holding the right amount... first be clear about why it is needed."*
3. **Assignment 2 (Reasoning):** Saya secara spesifik menggunakan **Article 25.1, Recital (78), dan Article 89.1** serta menghubungkannya dengan konsep *Privacy by Design and Default* sesuai panduan rubric.